NON-DISCLOSURE AGREEMENT

Wabwire Global Innovations Ltd

Innovating Today. Transforming Tomorrow.

This Mutual Non-Disclosure Agreement ("Agreement") is made and entered into on _____ / _____ / _____ ("Effective Date") by and between:

1. PARTIES INVOLVED

PARTY A

WABWIRE GLOBAL INNOVATIONS LTD

Founder & Visionary: Brian Wabwire

Registered Address: _____

Postal Address: _____

Email: _____

Phone: _____

(Hereinafter referred to as "Party A")

AND

PARTY B

Name / Company: _____

Representative (if applicable): _____

Registered / Physical Address: _____

Postal Address: _____

Email: _____

Phone: _____

(Hereinafter referred to as "Party B")

Party A and Party B are collectively referred to as the "Parties" and individually as a "Party."

Each Party may act as either the Disclosing Party or the Receiving Party under this Agreement, depending on which Party is providing or receiving Confidential Information.

2. PURPOSE OF DISCLOSURE

The Parties wish to exchange Confidential Information solely for the purpose of evaluating, discussing, negotiating, developing, implementing, or carrying out the following business relationship, project, transaction, or collaboration:

_____

_____

_____

The Parties agree that all Confidential Information exchanged under this Agreement shall be used only for the purpose described above unless otherwise agreed in writing.

3. DEFINITION OF CONFIDENTIAL INFORMATION

For the purposes of this Agreement, "Confidential Information" means any non-public information disclosed by either Party to the other, whether before or after the Effective Date, in written, oral, electronic, digital, visual, physical, or any other form.

Confidential Information includes, without limitation:

- Business plans and strategic plans
- Business models and operational procedures
- Financial information and projections
- Customer, supplier, investor, and partner information
- Marketing plans and campaigns
- Sales information and pricing
- Product concepts, prototypes, and designs
- Software, applications, databases, algorithms, and source code
- Technical documentation and system architecture
- Research and development information
- Trade secrets and proprietary methodologies
- Intellectual property not publicly available
- Login credentials, passwords, and security information
- Contracts, commercial negotiations, and business opportunities
- Reports, presentations, manuals, and internal documentation
- Any information identified as confidential or which a reasonable person would understand to be confidential given its nature and the circumstances of disclosure.

Confidential Information shall remain the property of the Disclosing Party regardless of the format in which it is disclosed.

4. OBLIGATIONS OF THE RECEIVING PARTY

Whenever either Party acts as the Receiving Party, it shall:

1. Keep all Confidential Information strictly confidential.
2. Use the Confidential Information solely for the Purpose stated in this Agreement.
3. Not disclose Confidential Information to any third party without the prior written consent of the Disclosing Party.
4. Restrict access to Confidential Information to employees, directors, officers, consultants, advisers, contractors, or professional representatives who have a legitimate need to know and who are subject to confidentiality obligations no less protective than those contained in this Agreement.
5. Exercise at least the same degree of care used to protect its own confidential information, and in any event not less than a reasonable standard of care.
6. Not copy, reproduce, distribute, publish, reverse engineer, decompile, modify, exploit, or otherwise use the Confidential Information except as expressly permitted under this Agreement.

7. Promptly notify the Disclosing Party upon becoming aware of any unauthorized disclosure, access, loss, or misuse of Confidential Information.
8. Cooperate with the Disclosing Party in mitigating the effects of any unauthorized disclosure.

These obligations apply equally to both Parties whenever they receive Confidential Information from the other.

5. EXCLUSIONS FROM CONFIDENTIALITY

Confidential Information shall not include information which the Receiving Party can demonstrate:

- Was publicly available at the time of disclosure.
- Becomes publicly available through no breach of this Agreement.
- Was lawfully known to the Receiving Party before disclosure by the Disclosing Party.
- Was independently developed by the Receiving Party without use of or reference to the Disclosing Party's Confidential Information.
- Was lawfully obtained from a third party without breach of any confidentiality obligation.
- Must be disclosed pursuant to applicable law, regulation, governmental authority, or court order, provided that the Receiving Party (where legally permitted) gives prompt written notice to the Disclosing Party and reasonably cooperates in seeking protective measures.

6. TERM OF THE AGREEMENT

This Agreement shall commence on the Effective Date and shall remain in force until:

_____

Unless terminated earlier by mutual written agreement.

The confidentiality obligations contained herein shall continue for:

_____

following the expiration or termination of this Agreement, or for as long as the Confidential Information remains confidential under applicable law, whichever period is longer.

Termination of this Agreement shall not affect any rights or obligations that accrued before termination.

7. RETURN OR DESTRUCTION OF CONFIDENTIAL INFORMATION

Upon written request by the Disclosing Party or upon termination of this Agreement, the Receiving Party shall promptly:

- Return all Confidential Information and all copies thereof; or
- Securely destroy all Confidential Information and any copies, extracts, summaries, notes, analyses, or reproductions.

If destruction is requested, the Receiving Party shall provide written confirmation upon request.

The Receiving Party may retain copies only where required by applicable law, regulatory obligations, or legitimate archival purposes, provided such retained information remains subject to this Agreement.

8. NO LICENSE OR OWNERSHIP TRANSFER

Nothing contained in this Agreement shall:

- Transfer ownership of any Confidential Information.
- Grant any licence, assignment, or right under any patent, copyright, trademark, trade secret, design, database right, or other intellectual property.
- Require either Party to enter into any further commercial relationship.

Each Party retains all rights, title, and interest in its Confidential Information and intellectual property.

9. REMEDIES

The Parties acknowledge that unauthorized disclosure or misuse of Confidential Information may result in immediate and irreparable harm for which monetary damages alone may be inadequate.

Accordingly, the affected Party shall be entitled, in addition to any other rights and remedies available under applicable law, to seek:

- Interim or permanent injunctive relief;
- Specific performance;
- Equitable relief;
- Recovery of damages;
- Recovery of legal costs where permitted by law; and
- Any other remedy available under the laws of the Republic of Kenya.

The rights and remedies under this Agreement are cumulative and not exclusive.

10. DISPUTE RESOLUTION & GOVERNING LAW

This Agreement shall be governed by and construed in accordance with the laws of the Republic of Kenya.

In the event of any dispute arising out of or relating to this Agreement, the Parties agree to:

1. First attempt to resolve the dispute through good-faith negotiations.
2. If the dispute remains unresolved, submit the matter to mediation by mutual agreement.
3. Where mediation fails or is not pursued, either Party may institute proceedings before the competent courts of the Republic of Kenya.

11. GENERAL PROVISIONS

11.1 Entire Agreement

This Agreement constitutes the entire understanding between the Parties concerning confidentiality and supersedes all prior discussions, negotiations, or understandings relating to its subject matter.

11.2 Amendments

No amendment, modification, or variation of this Agreement shall be valid unless made in writing and signed by both Parties.

11.3 Severability

If any provision of this Agreement is determined to be invalid, illegal, or unenforceable, the remaining provisions shall continue in full force and effect.

11.4 No Waiver

Failure or delay by either Party to exercise any right under this Agreement shall not constitute a waiver of that right or any other right.

11.5 Assignment

Neither Party may assign or transfer its rights or obligations under this Agreement without the prior written consent of the other Party, except where permitted by applicable law.

12. ACCEPTANCE & SIGNATURES

By signing below, the Parties acknowledge that they have read, understood, and voluntarily agree to be legally bound by the terms and conditions of this Mutual Non-Disclosure Agreement.

FOR WABWIRE GLOBAL INNOVATIONS LTD

Name:

_____

Title:

_____

Signature:

_____

Date:

_____

Company Stamp:

_____

FOR THE OTHER PARTY

Name:

_____

Title:

_____

Company / Organization:

_____

Signature:

_____

Date:

_____

Official Stamp (if applicable):

_____